

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 24-12

20230930-DK-BUTTERFLY-1, INC., F/K/A BED BATH & BEYOND INC.

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982) consisting of
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., AND
EVERGREEN MARINE (SINGAPORE) PTE. LTD.

**COMPLAINANT’S REVISED CONSENT MOTION TO FILE UNDER SEAL
COMPLAINANT’S OPPOSITION TO RESPONDENTS’ MOTION TO COMPEL**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on December 6, 2024, *see* Dkt. 29; Dkt. 27 (Dec. 5, 2024) (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant” or “BBBY”), by and through its undersigned attorneys, and with the consent of Respondents, respectfully moves for an order permitting Complainant to file under seal with the Presiding Officer unredacted copies (containing proposed redactions) of its Memorandum in Opposition to Respondents’ Motion to Compel (“Memorandum”); Exhibit A, Respondents’ Supplemental Interrogatories (“Exhibit A”); Exhibit B, Complainant’s Response to Supplemental Interrogatories (“Exhibit B”); Declaration of Mohini Priya, Declaration of Mohini Priya regarding Good Faith; and Exhibit 1, an email dated August 1, 2025 between Complainant’s counsel and Respondents’ counsel (the “Subject Filings”), filed contemporaneously herewith, and file on the public docket of this case redacted copies of the Subject Filings.

LEGAL FRAMEWORK

The Subject Filings are being filed contemporaneously with the instant motion pursuant to the Presiding Officer's February 28, 2024 Initial Order in this action.

Under Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating "the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii)." 46 C.F.R. Section 502.5(b). The Protective Order agreed to by the Parties and entered by the Presiding Officer in this case establishes the standard for confidentiality protection of documents produced in discovery in this case. *See* Protective Order Section 1.

Section 6 of the Protective Order provides in relevant part that:

"A Designator may designate as "Confidential" any document, information, or testimony that is commercially sensitive and is not publicly known, including documents, information, and testimony provided by non-parties to the producing party or non-party with the expectation that the information remain confidential ("Confidential Information").

REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL

Complainant's Subject Filings filed herewith contain and refer to material (the "Subject Materials") designated by Complainant (the "BBBY Materials") as Confidential or Attorneys Eyes Only ("AEO") pursuant to the Protective Order. Following the initial filing of the Subject Materials and a Motion requesting to file them under seal on August 20, 2025 (the "Prior Motion") and the Status Conference with the Presiding Officer on August 21, 2025, Complainant's counsel and Respondents' counsel had a meet and confer on August 21, 2025 regarding confidentiality of Complainant's Opposition to Respondents' Motion to Compel and, during the meet and confer process, came to a consensus on the proposal to only redact pricing information. Complainant

therefore withdraws its Prior Motion and seeks leave pursuant to the present motion to refile the attached version, with revised Exhibit B, which only redacts price information.

BBBY Materials: The BBBY Materials consist of Interrogatory Response appendices containing non-public commercially sensitive pricing data involving third party entities and Evergreen.

Good cause exists for the confidential treatment of the BBBY Materials. The BBBY Materials are subject to the Protective Order in this action and have been designated by Complainant as either Confidential or AEO pursuant to that Protective Order. Non-public commercially sensitive pricing data, along with cost data concerning not only ocean freight costs but also merchandise costs and supplier pricings, are confidential business information and are subject to Complainant's confidentiality obligations under their respective contractual agreements.

In an effort to enable the Presiding Officer to identify Complainant's proposed redactions, the nonpublic, sealed version of the Subject Filings contains yellow highlighting for redactions involving the BBBY Materials.

CONCLUSION

Consistent with the requirements of the Protective Order in this case and for good cause shown, Complainant seeks by the instant motion leave to file its Subject Filings under seal.

Dated: August 27, 2025

Respectfully submitted,

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Beyond Inc.*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corp. (Taiwan) Ltd., Evergreen Marine (UK) Ltd., Italia Marittima S.p.A., Evergreen Marine (Hong Kong) Ltd., and Evergreen Marine (Singapore) Pte. Ltd. by emailing a copy to their counsel of record listed below:

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*Counsel for Respondents Evergreen Line Joint Service Agreement
(FMC#011982) et al*

Dated: August 27, 2025

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